CRISIS OF CREDIBILITY

INTERNAL FRICTION AND COURT SCRUTINY CAST A SHADOW ON THE IMPARTIALITY, INTEGRITY AND TRANSPARENCY OF THE POLL BODY. WHAT NEEDS TO BE DONE TO RESTORE PEOPLE'S FAITH

By **KAUSHIK DEKA** / *Illustration by* **NILANJAN DAS / AI**

For months, the Election Commission of India (ECI) has fought Opposition allegations of "*vote chori*" and rejected claims that its Special Intensive Revision (SIR) of electoral rolls placed an unconstitutional burden on vulnerable citizens. On September 23, a report in *The Indian Express* brought the credibility battle to Nirvachan Sadan itself. Two of the three election commissioners, Sukhbir Singh Sandhu and Vivek Joshi, reportedly recorded objections at least 14 times over 10 months to decisions and orders they said were taken without their knowledge, asking who had authorised them. The ECI, on its part, through two press notes, said that all decisions related to the SIR were unanimous, though it did not respond to some of the other allegations in the newsreport.

The controversy has now reached the Supreme Court. On September 29, the apex court agreed to hear, in the following week, a petition asking whether Chief Election Commissioner (CEC) Gyanesh Kumar took key decisions without the concurrence of the other two election commissioners (ECs). The plea seeks production and preservation of the ECI's records since October 2025, potentially putting its internal decision-making and claims of unanimity under judicial scrutiny. The ECI must not merely be independent but must also be seen to be independent, Supreme Court Justice Dipankar Datta said